

Naubahar Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 15 September 2017 · Writ-C No. 42974 of 2017 · WRIT - C No. 42974 of 2017 · **Writ against theft assessment not entertained; relegated to departmental forum.**

HEADNOTE

A writ challenging an assessment raised after alleged theft of electricity will not be entertained where departmental remedies before the appropriate Forum under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 remain available; the petition is consigned to the record.

FACTUAL SUMMARY

Naubahar Singh filed a writ petition in the Allahabad High Court against the State of U.P. and others, including the Electricity Department. The Division Bench heard counsel for the petitioner and for the Electricity Department on 15 September 2017. The case was put as one in which theft of electricity had been located and an assessment thereafter raised. The petitioner sought to challenge that assessment in writ. The Court pointed to departmental remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · UP-2005

assessment-alternative-remedy

HOLDING

Where theft of electricity is said to have been detected and an assessment raised, a writ petition challenging that assessment will not be entertained if departmental remedies before the appropriate Forum under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 remain available; the petition is consigned to the record. ¶ 2

FLAG No Code clause or Act section is identified. The order styles the statute as 'U.P. Electricity Act, 2003' and refers to an 'appropriate Forum' without distinguishing CGRE, assessing officer, or s.127 appellate authority.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ALLEGED THEFT DETECTION AND OF THE ASSESSMENT

Writ not entertained; petitioner left to departmental remedies under the 2003 Act and the 2005 Code. ¶ 2